

CHAPTER 64

Transport Charges &c. (Miscellaneous Provisions) Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Charges on certain independent public service vehicles.
2. Charges on independent tramways, trolley vehicles and railways of the nature of a tramway.
3. Application of charges schemes to independent railway and inland waterway undertakings.
4. Modification and alteration of charges schemes in application to independent railway and inland waterway undertakings.
5. Extension to independent railway and inland waterway undertakings of provisions applying to Commission.
6. Revision of charges by independent harbour undertakings, etc.
7. Power of independent harbour undertaking to make charges in respect of seaplanes, etc.
8. Revocation in part (with savings) of Defence Regulation 56.
9. Control of number of passengers on public service vehicles, tramcars and trolley vehicles.
10. Yearly accounts and returns by independent railway undertakings.
11. Repeal of requirement to transmit benefit of rate-relief.
12. Expenses, etc.
13. Interpretation.
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15. Short title and extent.

SCHEDULES:

First Schedule—Powers and duties of licensing authority for public service vehicles with respect to charges on independent tramways, trolley vehicles and railways of the nature of a tramway.

Second Schedule—Enactments repealed.

An Act to amend the law relating to the charges of certain undertakings connected with transport and to the accounts and returns to be prepared by railway undertakings, being in either case undertakings which do not form part of the undertaking of the British Transport Commission; to revoke in part (with savings) Defence Regulation 56; to provide for the control of the number of passengers to be carried on public service vehicles, tramcars and trolley vehicles; to repeal the Railway Freight Rebates Enactments, 1929 to 1943; and for purposes connected with the matters aforesaid. [25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) This section shall apply to services by public service vehicles provided by any independent statutory undertaking. Charges on certain independent public service vehicles.
- (2) The fares chargeable on any service to which this section applies provided under a road service licence shall be those

fixed by the licensing authority for public service vehicles by means of conditions attached to the licence under, and in accordance with the provisions of, section seventy-two of the Road Traffic Act, 1930, or, in the case of any fares not so fixed, such fares as the undertakers may think fit; and for the purposes of any application for the grant of, or for the variation of the conditions attached to, such a licence the undertakers shall have power to propose such fares as they may think fit.

(3) The charges to be made for passengers on any other service to which this section applies shall be such as the undertakers may think fit.

(4) Subject, in the case of any service provided under a road service licence, to any conditions attached to the licence as aforesaid by the said licensing authority, the charges to be made for the carriage on any service to which this section applies of dogs or other animals, luggage, parcels, or other goods or articles (where and to the extent that such carriage is authorised) shall be such, if any, as the undertakers may think fit.

(5) Where any independent undertaking providing services by public service vehicles is not a statutory undertaking but the fares chargeable on any particular services provided by that undertaking are regulated by an agreement confirmed or authorised by an Act of Parliament, this section shall apply to those particular services as if the undertaking were a statutory undertaking.

Charges on independent tramways, trolley vehicles and railways of the nature of a tramway.

2.—(1) This section shall have effect with respect to services by tramway, trolley vehicles or a railway of the nature of a tramway provided by any independent undertaking, other than services by a tramway laid wholly along a pier.

(2) A licensing authority for public service vehicles shall have such powers and duties as are conferred or imposed by the First Schedule to this Act with respect to the charges to be made on any service to which that Schedule applies.

(3) In the case of an undertaking providing services to which Part II of the said First Schedule applies, being an undertaking in existence at the date of the passing of this Act, the undertakers—

(a) shall continue to have the same powers with respect to the fares chargeable on regular services to which that Part of that Schedule applies as they would have had if this Act had not been passed unless and until fare-tables for such services provided by that undertaking have been approved by such a licensing authority as aforesaid under that Part of that Schedule and have come into effect;

(b) for the purposes of any application to such a licensing authority as aforesaid under that Part of that Schedule

with respect to any service to which that Part of that Schedule applies, shall have power to propose such fares as they may think fit.

(4) Subject to the provisions of Part III of the said First Schedule, the charges to be made for passengers on any service with respect to which this section has effect but to which Part II of that Schedule does not apply shall be such as the undertakers may think fit.

(5) Subject, in the case of any service to which the said First Schedule applies, to any authorisation or direction given by the said licensing authority under that Schedule, the charges to be made for the carriage on any service with respect to which this section has effect of dogs or other animals, luggage, parcels, or other goods or articles (where and to the extent that such carriage is authorised) shall be such, if any, as the undertakers may think fit.

(6) The following provisions of the Railways Act, 1921, that is to say, Part III (so far as it applies to light railways) and section seventy-two, shall cease to apply to any independent light railway which is a railway of the nature of a tramway.

3.—(1) This section shall apply to—

(a) any independent railway undertaking, being a statutory undertaking and not being an undertaking carrying on only—

- (i) a railway of the nature of a tramway ; or
- (ii) a railway laid wholly or mainly over a beach or wholly along a pier ; or

(iii) a railway of the nature of a lift providing communication between the top and bottom of a cliff ;

(b) any independent inland waterway undertaking any of the charges of which are 1888 Act charges :

Provided that this section or any order made thereunder shall not apply—

- (i) to any inland waterway undertaking in relation to charges other than 1888 Act charges ; or
- (ii) to any inland waterway undertaking forming part of a harbour undertaking if the inland waterway is situated wholly within the limits of the harbour ; or
- (iii) to any undertaking in relation to any charge if the statutory provisions relating to that undertaking confer a power of revising that charge on the Minister of Transport and Civil Aviation and some other Minister acting together.

(2) Subject to the provisions of the next following section, as from the expiration of a period of one month beginning with

Application
of charges
schemes to
independent
railway and
inland
waterway
undertakings.

the date of the passing of this Act the British Transport Commission (Passenger) Charges Scheme, 1954, as generally in force shall apply in relation to the passenger services by rail provided by any independent railway undertaking to which this section applies as it applies in relation to passenger services by rail provided by the Commission otherwise than upon the London Lines within the meaning of that scheme.

(3) When any charges scheme under Part V of the Transport Act, 1947, is confirmed after the passing of this Act, being a charges scheme for determining charges of the following descriptions to be made by the Commission, that is to say—

- (a) charges for the carriage of passengers by railway ; or
- (b) charges for the carriage of merchandise by railway ; or
- (c) railway tolls, that is to say, charges for the use of the railways of the Commission by traffic drawn by engines not belonging to the Commission ; or
- (d) tolls for the use of inland waterways as defined in subsection (7) of section twenty of the Transport Act, 1953 ; or
- (e) any other charges which, by reason of their connection with any of the charges aforesaid, have been dealt with by the scheme by virtue of paragraph (f) of subsection (1) of the said section twenty,

the Minister shall consider that scheme and, if he is satisfied that the scheme or any part thereof can properly be applied to all or any class of railway or, as the case may require, inland waterway undertakings to which this section applies, shall by order made by statutory instrument provide that, as from the date when that scheme is to come into force in relation to the Commission or as from the expiration of a period of one month beginning with the date of the making of the order, whichever is the later, that scheme as generally in force, or any specified part of that scheme as generally in force, shall apply to each of those undertakings or to each of that class of undertakings, subject to any modifications or alterations made by or under the next following section, as it applies to the Commission.

(4) Where, by subsection (2) of this section or by an order made under subsection (3) of this section, a charges scheme has been applied to an undertaking to which this section applies, then—

- (a) that scheme as specially in force shall have effect in relation to that undertaking notwithstanding anything in any statutory provision relating to the subject matter of the scheme ; and
- (b) notwithstanding the revocation of that scheme as generally in force, that scheme as specially in force immediately before that revocation shall continue to have effect in relation to that undertaking as if no such revocation had taken place until, and except to the

extent that, the scheme as specially in force is revoked by an order of the Minister under subsection (3) of this section applying to that undertaking a new scheme or part of a new scheme with respect to all or any of the matters dealt with therein.

(5) In this and the next following section—

- (a) the expression “as generally in force” in relation to a charges scheme means that scheme as for the time being in force in relation to the Commission, whether as originally confirmed or as altered, amended or deemed to be amended under section seventy-nine or section eighty of the Transport Act, 1947, or section twenty-three of the Transport Act, 1953 ;
- (b) the expression “as specially in force” in relation to a charges scheme applied to an undertaking by or under this section means that scheme as generally in force subject to any modifications or alterations made by or under the next following section for the time being in force in relation to that undertaking.

4.—(1) Without prejudice to the powers of the Transport Tribunal under the next following subsection, any charges scheme applied to an independent undertaking by or under the last foregoing section shall apply to that undertaking subject to the following modifications, that is to say—

- (a) for any reference in the scheme to the Commission there shall be substituted a reference to the undertakers ; and
- (b) in the case of a light railway connecting (whether by means of a junction or of adjacent sidings) with any railway forming part of the undertaking of the Commission, for the purpose of the calculation of charges under the scheme by mileage each mile of the light railway shall be treated as if it were a mile and a quarter ;

Modification and alteration of charges schemes in application to independent railway and inland waterway undertakings.

and an order made under subsection (3) of the last foregoing section applying a scheme to any undertaking may provide for any other modifications which are in the opinion of the Minister necessary in order to make that scheme apply to that undertaking as it applies to the Commission.

(2) Where a charges scheme has been applied to any undertaking by or under the last foregoing section, section seventy-nine of the Transport Act, 1947 (which relates to applications to the Transport Tribunal for the alteration of charges schemes) shall apply also for the purposes of the alteration of that scheme as specially in force in relation to that undertaking, subject, however, to the following modifications, that is to say—

- (a) any reference in that section to a charges scheme shall be construed as a reference to a charges scheme as specially in force in relation to that undertaking ;

- (b) for any reference in that section to the Commission there shall be substituted a reference to the undertakers ;
- (c) the proviso to subsection (1) of that section shall be omitted ;
- (d) the Tribunal may, if they think fit, make such order, if any, with respect to the matter of the application as they think fit without holding a public inquiry as provided by subsection (4) of that section ; and subsection (5) of that section shall apply to any order so made as it applies to an order made under the said subsection (4) ;

and the Tribunal may make under the said section seventy-nine as modified by this subsection any alteration in the scheme as specially in force which they might have made under section seventy-eight of the said Act of 1947 if the scheme as specially in force had been a draft of a charges scheme submitted by the Commission for confirmation by the Tribunal.

(3) An application may be made to the Transport Tribunal under section seventy-nine of the Transport Act, 1947, as modified by the last foregoing subsection, for the alteration of a charges scheme as applied to any independent undertaking by subsection (2) or an order made under subsection (3) of the last foregoing section notwithstanding that the application is made before the date as from which that scheme is to apply to that undertaking ; and where such an application is made before that date, then, notwithstanding anything in that subsection or order, the scheme shall not apply to that undertaking until such date as the Tribunal may determine.

(4) With respect to so much of the remuneration of the members, officers and servants and other expenses of, and of the remuneration and expenses of persons appointed from any panel of, the Transport Tribunal (so far as not met out of the amount recovered by way of fees) as may be apportioned by the Tribunal to the performance of any functions with respect to an independent undertaking by virtue of this section, subsection (2) of section twenty-one of the Railways Act, 1921, and sub-paragraph (2) of paragraph 7 of the Tenth Schedule to the Transport Act, 1947, shall have effect as if the obligation to repay or pay to the Minister the remuneration and expenses aforesaid (so far as not met as aforesaid) had been imposed thereby on that undertaking instead of on the Commission.

Extension
to independent
railway and
inland
waterway
undertakings
of provisions
applying to
Commission.

5.—(1) The enactments referred to in subsection (1) of section twenty-one of the Transport Act, 1953 (which provides that the said enactments, being enactments relating to equality of charges, undue preference and certain other matters connected with charges, shall not apply to the Commission) shall not apply to any independent railway undertaking or to any independent inland waterway undertaking in relation to 1888 Act charges.

(2) The following provisions (which relate to the protection of competitors and traders and certain other matters), that is to say, subsections (2) to (5) and (7) of the said section twenty-one, section twenty-two of, and the Fourth Schedule to, the said Act of 1953, and subsection (5) of section eighty-three of the Transport Act, 1947, shall apply to any independent railway undertaking to which section three of this Act applies as they apply to the Commission.

(3) Subsection (6) of the said section twenty-one (which provides for the removal of restrictions on the charges which may be made for carriage by water) shall apply to any independent inland waterway undertaking in relation to 1888 Act charges as it applies to the Commission.

(4) Subsection (1) of section eighty-two of the Transport Act, 1947 (which makes transitional provisions as to charges) shall apply to any independent undertaking to which section three of this Act applies in relation to charges to which the said section three relates as it applies to the Commission:

Provided that the said subsection (1) and any regulations made thereunder shall not apply in relation to any charge which is the subject of a charges scheme for the time being in force with respect to that undertaking by virtue of, or of any order made under, the said section three.

(5) In the application of the provisions of the said Acts of 1947 and 1953 referred to in subsection (2), (3) or (4) of this section to any independent undertaking—

- (a) for any reference in those provisions to the Commission there shall be substituted a reference to the undertakers; and
- (b) in subsection (3) of section twenty-one of the said Act of 1953, the reference to the coming into force of a charges scheme shall be construed as a reference to the coming into force with respect to the undertaking of a charges scheme as applied to the undertaking by an order made under subsection (3) of section three of this Act.

6.—(1) This section shall apply to any independent statutory undertaking, being—

- (a) a harbour undertaking, other than an excepted undertaking; or
- (b) an inland waterway undertaking, so, however, that this section shall not apply in relation to any 1888 Act charges unless the undertaking forms part of a harbour undertaking and the inland waterway is situated wholly within the limits of the harbour; or

Revision of charges by independent harbour undertakings, etc.

- (c) a ferry undertaking, other than an undertaking acquired under the Ferries (Acquisition by Local Authorities) Act, 1919, or an undertaking which is a marine work within the meaning of the Harbours, Piers and Ferries (Scotland) Act, 1937, to which Part III of the said Act of 1937 for the time being applies ; or
- (d) an undertaking engaged in the maintenance of a bridge ; or
- (e) a local lighthouse authority within the meaning of the Merchant Shipping Act, 1894, so, however, that this section shall not apply in relation to any charges which are the subject of an Order in Council made, whether before or after the passing of this Act, under section six hundred and fifty-five of the said Act of 1894 ; or
- (f) one of any other class of undertakings connected with transport which the Minister may from time to time by order declare to be a class of undertakings to which this section applies :

Provided that this section shall not apply to any undertaking in relation to any charge if the statutory provisions relating to that undertaking confer a power of revising that charge on the Minister of Transport and Civil Aviation and some other Minister acting together.

(2) An application may be made to the Minister at any time—

- (a) by the undertakers ; or
- (b) by any person, or any body representative of persons, appearing to the Minister to have a substantial interest, for the revision of any of the charges which the undertakers are for the time being authorised to demand and take in pursuance of any statutory provision ; and if on any such application the Minister is satisfied that under the circumstances then existing it is proper so to do, he may, subject to the provisions of this section, make an order revising in such manner as he may think fit, with effect from such date as may be specified in the order, all or any of the said charges, whether or not the subject matter of the application, including any classification by reference to which the amount of any of those charges is to be determined ; and any such order shall have effect notwithstanding anything in any statutory provision relating to the subject matter of the order :

Provided that—

- (i) the Minister shall not vary any charge other than those to which the application relates except after consultation with the undertakers and such other persons, or such bodies representative of other persons, appearing to him to have a substantial interest as may appear to him appropriate ;

- (ii) where on any application under this section for an increase or a decrease in any charge the Minister has made an order or has decided that it is not proper to make an order, the Minister shall not entertain an application for a further increase or, as the case may be, a further decrease in that charge, or for a further revision of any other charge revised by the order, if any, so made, if that application is made before the expiration of a period of twelve months from the date of the making of the order or, as the case may be, from the date when the Minister gave notice of his decision not to make an order ;
- (iii) where the statutory provisions in force with respect to any particular undertaking on the third day of September, nineteen hundred and thirty-nine, authorised a maximum for any charge and made no provision for its revision, an order under this subsection shall not revise that charge so as to make it lower than the maximum so authorised ;
- (iv) where immediately before the commencement of this Act, or, in the case of an undertaking such as is referred to in paragraph (f) of subsection (1) of this section, immediately before the coming into force of the order therein mentioned, the undertakers were required by any statutory provision then in force to keep charges levied according to classes of voyages or otherwise in definite proportions, the Minister shall not make an order revising any of those charges which does not maintain the same proportions.

(3) In making any order on an application under this section, the Minister shall have regard to the financial position and future prospects of the undertaking and shall not make any revision of charges which in his opinion would be likely to result in the undertaking receiving an annual revenue either substantially less or substantially more than adequate to meet such expenditure on the working, management and maintenance of the undertaking and such other costs, charges and expenses of the undertaking as are properly chargeable to revenue, including reasonable contributions to any reserve, contingency or other fund and, where appropriate, a reasonable return upon the paid up share capital of the undertaking :

Provided that where the Minister is satisfied that, in view of the financial position of the undertaking during such period immediately preceding the application as may appear to him appropriate, there are special circumstances affecting the undertaking, the Minister may make such revision of charges as he may consider just and reasonable in the light of those special

circumstances, notwithstanding that it is in his opinion likely to result in the undertaking receiving an annual revenue substantially less than adequate for the purposes aforesaid.

(4) Where an application is made under this section, the applicant and, where the application is made otherwise than by the undertakers, the undertakers shall furnish the Minister with such information and particulars, certified in such manner, as the Minister may require, and the applicant shall publish in such newspapers as the Minister may require a notice stating—

(a) the general effect of the application ; and

(b) that within a period of forty-two days from the date of the first publication of the notice any person having a substantial interest may object to the application by giving notice to the Minister accompanied by the grounds of his objection with a copy to the applicant.

(5) Before making an order on an application under this section, the Minister shall, if required by the applicant or by any person who has objected to the application and has not withdrawn his objection or, where the order would vary any charge other than those to which the application relates, by any person or body with whom he has consulted in pursuance of paragraph (i) of the proviso to subsection (2) of this section, and in any other case may if he thinks fit, cause a local inquiry to be held by such person as he may appoint for the purpose ; and where such an inquiry is held subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, or, where the inquiry is held in Scotland, subsections (2) to (9) of section three hundred and fifty-five of the Local Government (Scotland) Act, 1947, shall apply to that inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the undertakers were a local authority.

(6) Any order under subsection (1) or subsection (2) of this section shall be made by statutory instrument, and an order made under the said subsection (2) may vary or revoke any previous order made under that subsection.

(7) Nothing in this section shall apply to any charge which, by the statutory provisions authorising the charge, is left to the discretion of the undertakers without any restriction or subject only to a requirement that the charge shall be reasonable ; and for the purposes of the promotion by any undertaking of a Bill, or of the making with respect to any undertaking of a Provisional Order, being a Bill or Order containing a provision revising any of the charges authorised to be demanded and taken by that undertaking, it shall be deemed, notwithstanding the passing of this section, that the objects of that provision cannot be attained except with new authority from Parliament.

7.—(1) Subject to the provisions of the Civil Aviation Act, 1949, any independent harbour undertaking to which the last foregoing section applies may demand and take charges in respect of any aircraft designed to float or manoeuvre on water which makes use of the undertaking.

(2) Any charges imposed by virtue of this section shall in the first instance require the approval of the Minister and shall thereafter be liable to revision under the last foregoing section.

(3) Any provision relating to charges in respect of such an aircraft as aforesaid contained in any statutory provision passed or made with respect to any particular independent harbour undertaking to which the last foregoing section applies shall cease to have effect:

Provided that any charges imposed by virtue of that provision and in force immediately before the passing of this Act shall be deemed to have been imposed by virtue of this section and to have been approved by the Minister.

(4) In section twenty-eight of the Harbours, Docks and Piers Clauses Act, 1847 (which relates to the exemption of certain vessels from harbour rates) as incorporated with any statutory provision, the expression "vessel" shall be deemed to include any such aircraft as aforesaid on the surface of the water.

8.—(1) Regulation 56 of the Defence (General) Regulations, 1939, as amended by any statutory provision, shall cease to have effect so far as it relates to any railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour or pier undertaking, and sub-paragraph (a) of paragraph (4) of that Regulation is hereby revoked:

Provided that—

(a) this section shall not affect any power with respect to charges possessed by any undertaking immediately before the commencement of this section which is attributable in whole or in part to any order made by the Minister under the said Regulation authorising the undertaking to make charges in excess of, or in addition to, those which they would otherwise have been authorised to make;

(b) any other order made by the Minister under the said Regulation before the sixteenth day of February, nineteen hundred and fifty-four, if and so far as it is in force immediately before the commencement of this section, shall continue in force notwithstanding the foregoing provisions of this section, but may be revoked at any time by the Minister by order made by statutory instrument; and the provisions of subsection (2) of sec-

Power of independent harbour undertaking to make charges in respect of seaplanes, etc.

Revocation in part (with savings) of Defence Regulation 56.

tion thirty-eight of the Interpretation Act, 1889, shall apply to any such revocation as they apply to the repeal of an Act of Parliament.

(2) This section shall come into force at the expiration of a period of one month beginning with the date of the passing of this Act.

Control of
number of
passengers on
public service
vehicles,
tramcars and
trolley vehicles.

9.—(1) The Minister may make regulations with respect to public service vehicles, tramcars and trolley vehicles providing for—

- (a) the determination by or under the regulations of the number of the seated passengers and standing passengers respectively whom any vehicle is constructed or adapted and fit to carry ;
- (b) the determination by or under the regulations of the number of such passengers respectively who may be carried in any vehicle ;
- (c) the marks to be carried on any vehicle showing the numbers aforesaid and the manner in which those marks are to be carried ;

and different regulations may be made for different cases or different circumstances.

(2) If any person contravenes or fails to comply with any such regulation he shall for each offence be liable on summary conviction to a fine not exceeding twenty pounds.

(3) Before making any such regulations, the Minister shall consult with such representative organisations as he thinks fit.

(4) Any such regulations shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Yearly
accounts and
returns by
independent
railway
undertakings.

10.—(1) In subsection (1) of section one of the Railway Companies (Accounts and Returns) Act, 1911 (which provides that every independent railway undertaking shall annually prepare accounts and returns in accordance with the form set out in the First Schedule to that Act) for the words “in accordance with the form set out in the First Schedule to this Act” there shall be substituted the words “in such form and containing such particulars as the Minister of Transport and Civil Aviation may from time to time either generally or in any particular case direct”, and subsection (1) of section seventy-seven of the Railways Act, 1921 (which makes provision as to the manner of compiling the accounts aforesaid) shall cease to have effect.

(2) In subsection (2) of the said section one (which requires accounts and returns to be made up for the year ending the thirty-first day of December or such other day as the Minister may fix) after the word “may” there shall be inserted the words “from time to time”.

(3) Section two of the said Act of 1911 (which provides for the filing of certain accounts by the registrar of companies) shall apply to all accounts prepared under that Act, and accordingly in subsection (1) of the said section two the words from "numbered" to "Act, as" shall be omitted.

(4) Subsection (2) of the said section seventy-seven (which requires independent railway undertakings to compile and render to the Minister certain additional statistics and returns) shall cease to have effect.

(5) This section shall come into force on the first day of January, nineteen hundred and fifty-five.

11. The Railway Freight Rebates Enactments, 1929 to 1943 (which relate to the transmission of the benefit of rate-relief in respect of freight-transport hereditaments, lands and heritages) shall cease to have effect, without prejudice, however, to any relief from rates provided for by any Act. Repeal of requirement to transmit benefit of rate-relief.

12.—(1) Any administrative expenses incurred by the Minister in the execution of this Act (including any charges and expenses of licensing authorities for public service vehicles attributable to the provisions of this Act) shall be paid out of moneys provided by Parliament. Expenses, etc.

(2) Any fees received by a licensing authority for public service vehicles by virtue of regulations made under the First Schedule to this Act shall be paid into the Exchequer.

(3) Any increase attributable to the provisions of this Act in the sums required under any other enactment to be paid out of moneys provided by Parliament or to be paid into the Exchequer shall be paid out of moneys so provided or, as the case may be, into the Exchequer.

13.—(1) In this Act, unless the context otherwise requires, the following expressions have the following meanings respectively— Interpretation.

"charges" includes fares, rates, tolls, fees and dues of every description; and "1888 Act charges", in relation to any inland waterway undertaking, means charges with respect to which a Provisional Order was made, and confirmed by Parliament, in pursuance of sections twenty-four and thirty-six of the Railway and Canal Traffic Act, 1888;

"the Commission" means the British Transport Commission;

"fares" includes sums payable in respect of a contract ticket or season ticket;

“harbour” means any harbour, whether natural or artificial, any port, haven, estuary, tidal or other river or inland waterway navigated by seagoing ships, and any dock, pier, wharf, quay, jetty, or other place at which ships can ship or unship goods or passengers ;

“harbour undertaking” means an undertaking engaged in improving, maintaining, working, managing or regulating a harbour ; and, in relation to any such undertaking, the expression “excepted undertaking” means—

(a) an undertaking carrying on a fishery harbour within the meaning of the Fishery Harbours Act, 1915, in the case of which, by or under section twenty-one of the Sea Fish Industry Act, 1951, the Minister of Agriculture and Fisheries is for the time being the appropriate Minister for the purposes of section fourteen of the General Pier and Harbour Act, 1861, Amendment Act ;

(b) an undertaking or part of an undertaking which is a marine work within the meaning of the Harbours, Piers and Ferries (Scotland) Act, 1937, to which Part III of that Act for the time being applies ;

“independent” means not forming part of the undertaking of the Commission ;

“inland waterway undertaking” means an undertaking engaged in conserving, maintaining, improving or working a canal or other inland navigation or the navigation of a tidal water ;

“the Minister” means the Minister of Transport and Civil Aviation ;

“railway of the nature of a tramway” means—

(a) a light railway laid wholly or mainly along a public carriageway and used wholly or mainly for the carriage of passengers ; or

(b) a railway which, under the statutory provisions relating thereto, is to be treated as forming part of a tramway undertaking ;

“ship” includes every description of vessel used in navigation ;

“statutory provision” means a provision whether of a general or a special nature contained in, or in any document made or issued under, any Act other than this Act, whether of a general or a special nature ;

“statutory undertaking” means an undertaking the carrying on of which is authorised by, or by an order made under, an Act of Parliament ;

“ tramcar ” includes a railway vehicle used on a railway of the nature of a tramway ;

and “ public service vehicle ”, “ road service licence ”, “ traffic area ” and “ trolley vehicle ” have the same meanings as in the Road Traffic Acts, 1930 to 1947.

(2) A provision of this Act which applies to an undertaking carrying on particular activities shall apply in respect of those activities to any undertaking (including an undertaking carried on by a local authority) engaged therein, whether or not that undertaking is also engaged in other activities, but shall not apply in respect of any such other activities :

Provided that, for the purposes of section six of this Act—

- (a) where the activities carried on by any undertaking cause that undertaking to fall into two or more classes of undertakings to which that section applies, nothing in this subsection shall cause that section to apply to the undertaking at any time as an undertaking of any one such class only unless the Minister is satisfied that the activities of the undertaking appertaining to that class are carried on separately from the other activities of the undertaking to which that section relates and that the undertaking should properly be treated as if it were a separate undertaking for the purposes of the activities appertaining to that class ;
- (b) where, in the case of an undertaking which falls into any of the classes aforesaid, the Minister is satisfied that particular activities of that undertaking appertaining to any one of the classes aforesaid are carried on separately from other activities of that undertaking appertaining to the same class and that it is proper that this paragraph should have effect in relation to that undertaking, the undertaking shall be treated as if those particular activities and those other activities respectively were carried on by separate undertakings.

(3) For the avoidance of doubt, it is hereby declared that in this Act, the Transport Act, 1947, and the Transport Act, 1953, the expression “ statutory provision ” includes a document made or issued in pursuance of a power conferred by an instrument made under an Act as well as a document made or issued in pursuance of a power conferred by an Act.

(4) Save in so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

Repeals,
adaptations
and savings.

14.—(1) The enactments specified in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule—

- (a) in the case of the enactments specified in Parts I and II of that Schedule, as from the passing of this Act ;
- (b) in the case of the enactments specified in Part III of that Schedule, as from the first day of January, nineteen hundred and fifty-five ;
- (c) in the case of the enactments specified in Part IV of that Schedule, as from the date when the first regulations made under section nine of this Act come into force.

(2) So much of any statutory provision (including any local Act passed at any time in the present session of Parliament) passed or made with respect to any particular undertaking providing services to which section one of this Act applies or with respect to which section two of this Act has effect, or applied to any such undertaking by any statutory provision so passed or made, as has the effect of—

- (a) fixing or regulating, or providing for the fixing or approval of, or prescribing a procedure for the revision of, or conferring any discretion upon the undertakers as to, the charges to be made for passengers on any of those services or any category of those services or any stage of any of those services ; or
- (b) restricting the discretion of the undertakers as to the stages which may be appointed on any route or service ; or
- (c) restricting the discretion of the undertakers as to the making of charges, and the amount of any charges to be made, for the carriage on any of those services of dogs or other animals, luggage, parcels, or other goods or articles (where and to the extent that such carriage is authorised),

and so much of any agreement such as is mentioned in subsection (5) of section one of this Act as has such an effect shall cease to have effect with respect to that undertaking :

Provided that—

- (i) without prejudice to the provisions of section eight of this Act, in this subsection the expression “ statutory provision ” does not include an order such as is referred to in the said section eight ; and
- (ii) nothing in this subsection shall affect any condition attached to a road service licence granted to any undertaking providing services to which section one of this Act applies.

(3) So much of any statutory provision (including any local Act passed at any time in the present session of Parliament) passed or made with respect to any particular undertaking to which section six of this Act for the time being applies as prescribes a procedure for the revision of any charges to which that section relates, or as confers upon the undertakers any power of revising any such charges with the approval or sanction of the Minister, or within defined limits, shall cease to have effect:

Provided that any such provision conferring upon the undertakers a power of revising any such charge within defined limits shall not cease to have effect by virtue of this subsection unless and until that charge is first revised by the Minister under the said section six.

(4) Except in relation to any charges of an independent inland waterway undertaking which are not 1888 Act charges, so much of any statutory provision (including any local Act passed at any time in the present session of Parliament) passed or made with respect to any particular railway or inland waterway undertaking as makes provision corresponding to any of the enactments specified in Part I of the Second Schedule to this Act, or as otherwise prohibits undue preference, or an undue or unreasonable prejudice or disadvantage in any respect, in favour of or against any person or particular class of persons or any particular description of traffic, shall cease to have effect.

(5) In addition to the enactments specified in Part IV of the Second Schedule to this Act, so much of any statutory provision (including any local Act passed at any time in the present session of Parliament) passed or made with respect to any particular undertaking as makes provision with respect to any of the matters with respect to which the Minister is empowered to make regulations by section nine of this Act shall cease to have effect as from the date when the first regulations made under that section come into force.

(6) Any reference (however expressed) in any statutory provision passed, made or applied as mentioned in subsection (2), (3) or (4) of this section to charges authorised by or in pursuance of the Act or other instrument containing that provision shall be construed as including a reference to charges for the time being authorised by or in pursuance of this Act.

(7) Notwithstanding anything in the foregoing provisions of this section, nothing in this Act shall affect the operation of section forty-four of the Post Office Act, 1953 (which relates to the conveyance of mails) or of that section as applied by any other statutory provision.

15.—(1) This Act may be cited as the Transport Charges &c. Short title
(Miscellaneous Provisions) Act, 1954. and extent.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES

Sections 2, 12.

FIRST SCHEDULE

POWERS AND DUTIES OF LICENSING AUTHORITY FOR PUBLIC SERVICE VEHICLES WITH RESPECT TO CHARGES ON INDEPENDENT TRAMWAYS, TROLLEY VEHICLES AND RAILWAYS OF THE NATURE OF A TRAMWAY

PART I

Services to which Schedule applies

1. This Schedule shall apply to services by tramway, trolley vehicles or a railway of the nature of a tramway provided by an independent undertaking, being services for the provision of which, if the vehicles used had been public service vehicles, a road service licence would have been necessary:

Provided that—

- (a) this Schedule shall not apply to services by a tramway laid wholly along a pier;
- (b) for the purposes of this Schedule, subsection (1) of section twenty-five of the Road Traffic Act, 1934 (which restricts the cases in which a vehicle may be used otherwise than under a road service licence) shall be deemed to have effect as if in paragraph (a) thereof for any reference to the holder of the public service vehicle licence in respect of the vehicle there were substituted a reference to the undertakers, and as if paragraphs (f) and (g) thereof were omitted.

PART II

Application of Part II

2. This Part of this Schedule shall apply to all services to which this Schedule applies except those to which Part III of this Schedule applies.

Regular services

3.—(1) The undertakers may at any time apply to a licensing authority for public service vehicles for an authorisation to make, and a licensing authority for public service vehicles may at any time serve notice on the undertakers of the intention of the authority to direct the making of, such variations in all or any of the fares for the time being charged on all or any of the regular services to which this Part of this Schedule applies provided by the undertaking on any route or part of a route lying within the traffic area of that authority as may be specified in the application or, as the case may be, notice.

(2) For the purposes of this Part of this Schedule the determination of the fares to be charged for any new or altered regular service to which this Part of this Schedule applies on any route or part of a route lying within the traffic area of the authority shall be deemed to be such a variation as aforesaid.

4. Any such application or notice shall be published and, after considering any objections or other representations which they may

receive with respect to the proposals made therein, the licensing authority shall either—

1ST SCH.
—cont.

- (a) direct that the fares for the time being charged as aforesaid shall continue to be charged without any variation ; or
- (b) authorise or direct, by means of fixing fares or maximum or minimum fares for the routes or stages affected, such variation in all or any of the said fares, whether or not affected by the application or notice, as the authority may consider reasonable or expedient in all the circumstances :

Provided that the licensing authority shall not authorise or direct an increase in any fare—

- (a) unless an increase in that fare was proposed in that application or notice ; or
- (b) in excess of the increase so proposed.

5.—(1) In the case of each licensing authority and each undertaking, on the first occasion on which any fares charged by the undertaking on a regular service to which this Part of this Schedule applies fall to be considered by the licensing authority, whether on an application by the undertakers or on a notice by the authority, the undertakers shall submit to the authority fare-tables showing—

- (a) all fares for the time being charged ; and
- (b) all maximum or minimum fares for the time being chargeable,

on each of the regular services to which this Part of this Schedule applies provided by that undertaking within the traffic area of that authority, whether or not affected by the variations proposed in the application or notice, and the authority shall approve fare-tables for all the regular services aforesaid incorporating the variations, if any, provided for by the authorisation or direction given in relation to the application or notice.

(2) On any subsequent application or notice under this Part of this Schedule with respect to any regular service provided by that undertaking, the licensing authority may, if they think fit, require the submission of, and approve, fare-tables as aforesaid.

(3) Where on any application or notice under this Part of this Schedule fare-tables have been approved for an undertaking by a licensing authority under the foregoing provisions of this paragraph, those fare-tables shall come into effect on the same date as the authorisation or direction given in relation to that application or notice ; and the fares thereafter charged on any regular services to which this Part of this Schedule applies provided by that undertaking within the traffic area of that authority shall, subject to any variation subsequently made therein under this Part of this Schedule, be those provided for by the fare-tables last so approved.

6.—(1) A licensing authority may serve a notice under paragraph 3 of this Schedule with respect to charges for the carriage by an undertaking on any regular service to which this Part of this Schedule applies of all or any of the following items (where and to the extent

1st SCH.
—cont.

that such carriage is authorised), that is to say, dogs or other animals, luggage, parcels, or other goods or articles, as if those charges were fares.

(2) Where such a notice has been served with respect to the charges made by any undertaking for the carriage of any of the items aforesaid, this Part of this Schedule shall thereafter have effect in relation to that undertaking as if the expression "fares" included charges for the carriage of that item.

Occasional services

7.—(1) If the undertakers propose to provide on any route an occasional service to which this Part of this Schedule applies at fares different from those charged on any regular service provided by the undertaking on that route or any part thereof, the undertakers shall apply to the licensing authority for public service vehicles within whose area that route or part of a route lies for the authorisation of the proposed fares.

(2) Any such application shall be published and, after considering any objections or other representations which they may receive with respect to the proposals made therein, the licensing authority shall either authorise the proposed fares or direct the charging of such other fares as they may think fit, and, subject to paragraph 16 of this Schedule, fares on any service to which the application relates shall be charged accordingly.

8. Without prejudice to sub-paragraph (2) of paragraph 6 of this Schedule, where in the case of any undertaking no notice has been served under that paragraph with respect to that undertaking but the undertakers propose to provide an occasional service to which this Part of this Schedule applies on which the terms for the carriage of dogs or other animals, luggage, parcels, or other goods or articles are to be different from those applicable to any regular service provided by the undertaking on the same route or the same part of a route, this Part of this Schedule shall have effect in relation to that service as if the expression "fares" included charges for such carriage.

9. Save as may be authorised or directed under paragraph 7 of this Schedule, the fares charged on any occasional service to which this Part of this Schedule applies shall not differ from those charged on any regular service on the same route or the same part of a route.

PART III

Special provisions with respect to certain services

10. This Part of this Schedule shall apply to such of the services to which this Schedule applies as are provided by an independent undertaking wholly or partly within an area (in this Part of this Schedule referred to as "the reserved area") within which any local Act restricts the provision by any person other than the undertakers of services by public service vehicles on which a passenger can be both taken up and set down within the reserved area on the same journey.

11. Where part of the route of a service to which this Part of this Schedule applies lies outside the reserved area, then—

1ST SCH.
—cont.

- (a) any local authority within whose area any part of that route outside the reserved area lies ; and
- (b) any person (other than the undertakers) providing transport facilities along or near that route or any part thereof,

may apply to the licensing authority for public service vehicles for a review by that authority of the fares for the time being charged on that service.

12. Any such application shall be published and notice thereof shall be served on the undertakers.

13. On any such review, if, after considering any objections or other representations which they may receive with respect to the application, and having regard to—

- (a) the fares charged by the undertakers on any service on a route lying wholly within the reserved area, being a route along or near that of the service to which the application relates which appears to the licensing authority to be fairly comparable ; and

(b) the fares and expenditure of the undertaking as a whole, the licensing authority are satisfied that the fares on the service in question are unreasonable or result in unfair competition, the licensing authority shall direct, by means of fixing fares or maximum or minimum fares for the route or stages affected, such variations in the fares for that service as they think reasonable or expedient in all the circumstances, or, if the licensing authority are not so satisfied, they shall dismiss the application.

14. Where a direction of the licensing authority under this Part of this Schedule has come into effect with respect to any service to which this Part of this Schedule applies, then—

- (a) the undertakers shall comply with that direction and shall not vary the fares provided for by that direction before the expiration of a period of six months from the date when that direction comes into effect ; and
- (b) the licensing authority shall not consider any further application with respect to that service made before the expiration of the said period ;

and where the licensing authority have dismissed any application under this Part of this Schedule, they shall not consider any further application thereunder with respect to the same service made before the expiration of a period of six months from the date of their decision.

15. In this Part of this Schedule, the expression “ fares ” includes charges for the carriage of dogs or other animals, luggage, parcels, or other goods or articles, and the expression “ local authority ” means the council of any county, county borough, non-county borough, urban district or rural district or, in Scotland, a county or town council.

1ST SCH.
—cont.

PART IV

Appeals and general

16.—(1) Subject to the next following sub-paragraph, any authorisation or direction given under this Schedule shall come into effect on such date as may be specified therein.

(2) Where, in the case of—

(a) an authorisation or direction under Part II of this Schedule varying any fares charged on a regular service ; or

(b) a direction under the said Part II for the charging on an occasional service of fares other than those proposed by the undertakers ; or

(c) a direction under Part III of this Schedule,

the undertakers give notice in writing to the licensing authority before the date specified as aforesaid or before the date of the expiration of the period within which an appeal may be made against that authorisation or direction under the next following paragraph, whichever date is the earlier, that they desire this sub-paragraph to apply, the authorisation or direction shall not come into effect before the expiration of the said period or, if an appeal is so made, before that appeal has been disposed of.

17.—(1) Any undertakers with respect to whose undertaking any authorisation or direction has been given under Part II of this Schedule and, where any such authorisation or direction has been given varying any fares charged on any regular service, any person who—

(a) being a local authority in whose area any of the routes or any part of any of the routes affected by the authorisation or direction is situated ; or

(b) being a person providing transport facilities along or near to any of the said routes or any part of any of the said routes, has made to the licensing authority objections with respect to all or any of the proposals contained in the application or notice in relation to which that authorisation or direction has been given, may appeal against that authorisation or direction to the Minister.

(2) Where an application has been made under Part III of this Schedule, an appeal to the Minister may be made—

(a) by the undertakers against any direction given on that application ; or

(b) by the applicant against any such direction or against the dismissal of the application.

(3) On any appeal under this paragraph the Minister may make such order as he thinks fit and any such order shall be binding on the licensing authority.

(4) Section forty-seven of the Road and Rail Traffic Act, 1933 (which relates to inquiries by the Minister) shall have effect for the purposes of appeals under this paragraph as it has effect for the purposes of that Act.

(5) In this paragraph, the expression “ local authority ” means the council of any county, county borough, non-county borough, urban district or rural district or, in Scotland, a county or town council.

18. The undertakers by whom any application is made or on whom any notice is served under this Schedule shall give to the licensing

authority all such information and assistance as the authority may require to enable them to determine what authorisation or direction to give under this Schedule.

1ST SCH.
—cont.

19. Where on any application or notice under Part II of this Schedule any question arises as to whether any particular service is for the purposes of that Part of this Schedule a regular service or an occasional service, that question shall be determined by the licensing authority, and their decision shall be final.

20.—(1) The Minister may make regulations—

- (a) as to the procedure, and the determination of questions arising, in connection with applications or notices under this Schedule ;
- (b) as to the persons on whom such notices are to be served ;
- (c) as to the manner in which such applications and notices are to be published and objections or other representations with respect thereto are to be made ;
- (d) providing for the publication of any decision of a licensing authority under this Schedule ;
- (e) prescribing the time within which and the manner in which appeals may be made under paragraph 17 of this Schedule ;
- (f) authorising the charging, and prescribing the amount, of fees in respect of any functions of a licensing authority under this Schedule ;
- (g) as to any forms to be used for the purposes of this Schedule ;
- (h) generally for the purpose of carrying this Schedule into effect ;

and different regulations may be made for different circumstances.

(2) Any such regulations shall be made by statutory instrument and be subject to annulment in pursuance of a resolution of either House of Parliament.

21. If, owing to special circumstances in the case of any particular application or notice under this Schedule, the licensing authority consider it necessary or expedient so to do, they may dispense in that case with compliance with any procedural requirement of this Schedule or of any regulations made thereunder.

22.—(1) A licensing authority may, if they think fit, hold public sittings for the purpose of the performance of any of their functions under this Schedule at any place in their traffic area which appears to them convenient.

(2) At any public sitting, not less than two of the persons constituting the authority shall be present, and if when only two of those persons are present there is a difference of opinion between them with respect to the decision to be made on any application or notice under this Schedule, the matter shall be re-heard and determined by all those persons.

23. Subject to the provisions of this Schedule, a licensing authority shall in performing their functions under this Schedule act under the general directions of the Minister.

24. A licensing authority shall include in the annual report made by them to the Minister under section sixty-five of the Road Traffic Act, 1930, a report on their proceedings under this Schedule containing particulars with respect to such matters as the Minister may direct.

Section 14.

SECOND SCHEDULE

ENACTMENTS REPEALED

PART I

Enactments relating to equality of charges, undue preference and certain other matters repealed as from the passing of this Act

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Vict. c. 20.	The Railways Clauses Consolidation Act, 1845.	Section ninety.
8 & 9 Vict. c. 28.	The Canal Tolls Act, 1845.	Section two, except so far as it relates to any charges of an independent inland waterway undertaking which are not 1888 Act charges.
8 & 9 Vict. c. 33.	The Railways Clauses Consolidation (Scotland) Act, 1845.	Section eighty-three.
8 & 9 Vict. c. 42.	The Canal Carriers Act, 1845.	Section four, except so far as it relates to any charges of an independent inland waterway undertaking which are not 1888 Act charges.
17 & 18 Vict. c. 31.	The Railway and Canal Traffic Act, 1854.	In section two, except so far as it relates to any charges of an independent inland waterway undertaking which are not 1888 Act charges, the words from "and no" to "disadvantage in any respect whatsoever" and the words from "and without" to "aforesaid".
26 & 27 Vict. c. 92.	The Railways Clauses Act, 1863.	Section thirty.
31 & 32 Vict. c. 119.	The Regulation of Railways Act, 1868.	Section sixteen.
36 & 37 Vict. c. 48.	The Regulation of Railways Act, 1873.	Section fourteen and, except so far as it relates to any charges of an independent inland waterway undertaking which are not 1888 Act charges, section fifteen.
51 & 52 Vict. c. 25.	The Railway and Canal Traffic Act, 1888.	Except so far as they relate to any charges of an independent inland waterway undertaking which are not 1888 Act charges, the following provisions, namely, sections twenty-seven and twenty-eight; in section twenty-nine, subsection (2) from "and that" onwards and subsection (3); sections thirty, thirty-three and thirty-four; and subsection (1) of section thirty-seven.
57 & 58 Vict. c. 54.	The Railway and Canal Traffic Act, 1894.	Section three.
11 & 12 Geo. 5. c. 55.	The Railways Act, 1921.	Subsection (5) of section fifty-four.

PART II

2ND SCH.
—cont.

Other enactments repealed as from the passing of this Act

Session and Chapter	Short Title	Extent of Repeal
31 & 32 Vict. c. 119.	The Regulation of Railways Act, 1868.	Section fifteen.
19 & 20 Geo. 5. c. 17.	The Local Government Act, 1929.	Section one hundred and thirty-six and the Eleventh Schedule.
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	Subsection (7) of section seventy-two; in section one hundred and four, the proviso to subsection (1) and in subsection (2) the words from "the charge" to "passenger".
23 & 24 Geo. 5. c. 53.	The Road and Rail Traffic Act, 1933.	Subsections (1) to (12) of section thirty-seven and section thirty-eight.
1 Edw. 8 & 1 Geo. 6. c. 2.	The Railway Freight Rebates Act, 1936.	The whole Act.
6 & 7 Geo. 6. c. 23.	The Railway Freight Rebates Act, 1943.	The whole Act.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	Subsection (5) of section thirty-eight; section seventy-four; in subsection (5) of section eighty-three the words "in its application to the Commission"; section eighty-seven; and in subsection (2) of section one hundred and twenty-three the words from "other than" to "Part V of this Act".
11 & 12 Geo. 6. c. 26.	The Local Government Act, 1948.	Section one hundred and four.
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953.	In section twenty-one, subsection (1) and in subsection (2) the words from "and section thirty of" onwards; and subsection (5) of section thirty-five from the second "and" onwards.

2ND SCH.
—cont.

PART III

*Enactments repealed as from the first day of January,
nineteen hundred and fifty-five*

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 5. c. 34.	The Railway Companies (Accounts and Returns) Act, 1911.	In subsection (1) of section two the words from "numbered" to "Act, as"; section three; subsection (3) of section six; and the First Schedule.
11 & 12 Geo. 5. c. 55.	The Railways Act, 1921.	Section seventy-seven and the Eighth Schedule.
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	In subsection (6) of section ninety-four the words "and section seventy-seven of the Railways Act, 1921".

PART IV

*Enactments repealed as from the date of coming into force of first
regulations under section nine of this Act*

Session and Chapter	Short Title	Extent of Repeal
5 & 6 Vict. c. 79.	The Railway Passenger Duty Act, 1842.	Sections thirteen to nineteen.
10 & 11 Vict. c. 89.	The Town Police Clauses Act, 1847.	So far as they relate to tramcars or trolley vehicles, sections fifty-one and fifty-two and in section sixty-eight the words from "the number" to "such carriage, and."
16 & 17 Vict. c. 33.	The London Hackney Carriage Act, 1853.	Section nine so far as it relates to tramcars or trolley vehicles.
32 & 33 Vict. c. 115.	The Metropolitan Public Carriage Act, 1869.	In paragraph (1) of section nine, the words from "the number" to "such carriage, and" so far as they relate to tramcars or trolley vehicles.
52 & 53 Vict. c. 14.	The Town Police Clauses Act, 1889.	In section six the words from "for regulating the number of" to "thereon".
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	In section two hundred and seventy-two the words "number of passengers to be carried by and" so far as they relate to tramcars or trolley vehicles.
60 & 61 Vict. c. 38.	The Public Health (Scotland) Act, 1897.	In section sixty-five the words from "and for" onwards so far as they relate to tramcars or trolley vehicles.
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	Paragraph (h) of section ninety-four.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Harbours, Docks and Piers Clauses Act, 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act, 1861, Amendment Act ...	25 & 26 Vict. c. 19.
Railway and Canal Traffic Act, 1888 ...	51 & 52 Vict. c. 25.
Interpretation Act, 1889 ...	52 & 53 Vict. c. 63.
Merchant Shipping Act, 1894 ...	57 & 58 Vict. c. 60.
Railway Companies (Accounts and Returns) Act, 1911 ...	1 & 2 Geo. 5. c. 34.
Fishery Harbours Act, 1915 ...	5 & 6 Geo. 5. c. 48.
Ferries (Acquisition by Local Authorities) Act, 1919	9 & 10 Geo. 5. c. 75.
Railways Act, 1921 ...	11 & 12 Geo. 5. c. 55.
Road Traffic Act, 1930 ...	20 & 21 Geo. 5. c. 43.
Local Government Act, 1933 ...	23 & 24 Geo. 5. c. 51.
Road and Rail Traffic Act, 1933 ...	23 & 24 Geo. 5. c. 53.
Road Traffic Act, 1934 ...	24 & 25 Geo. 5. c. 50.
Harbours, Piers and Ferries (Scotland) Act, 1937...	1 Edw. 8. & 1 Geo. 6. c. 28.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Transport Act, 1947 ...	10 & 11 Geo. 6. c. 49.
Civil Aviation Act, 1949 ...	12, 13 & 14 Geo. 6. c. 67.
Sea Fish Industry Act, 1951 ...	14 & 15 Geo. 6. c. 30.
Transport Act, 1953 ...	1 & 2 Eliz. 2. c. 13.
Post Office Act, 1953 ...	1 & 2 Eliz. 2. c. 36.

CHAPTER 65

National Gallery and Tate Gallery Act, 1954

ARRANGEMENT OF SECTIONS

Section

1. Transfer from National Gallery Trustees to Tate Gallery Trustees of responsibility for Tate Gallery collection.
2. Powers of transfer between the National Gallery and Tate Gallery collections.
3. Allocation of gifts and bequests.
4. Powers of lending exercisable by National Gallery Trustees and Tate Gallery Trustees.
5. Powers to transfer works of art from Tate Gallery for display elsewhere.
6. Abrogation of power to sell works of art in National Gallery.
7. National Gallery collection to be vested in the Trustees without their director.
8. Short title, repeals and commencement.

SCHEDULES:

First Schedule—Museums and other Institutions for the purposes of sections three and five of this Act.

Second Schedule—Repeals.